

2012 WL 2344362 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Chevon HUTCHINSON, Plaintiff,

v.

Detective Rosa GONZALEZ-NOA and SGT. **Eric Beckel** and the City of New York, Defendants.

No. 0304646-2012.
May 24, 2012.

Summons

[Gary N. Rawlins](#), Attorney for Plaintiff, Chevon Hutchinson, 80 Broad Street, New York, NY 10004, (212) 926-0050, (212) 926-0059(fx).

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint

Dated: New York, NY May 23, 2012

Plaintiff, by his attorney, GARY N. RAWLINS, Esq. as and for his Complaint respectfully alleges, upon information and belief:

1. This is a civil litigation action seeking damages against Defendants for committing acts under color of law, and depriving Plaintiff of rights secured by the Constitution and laws of the United States. On or about June 18, 2009, Defendants **New York City** (hereafter "NYC"), **DETECTIVE ROSA GONZALEZ-NOA (ID:930246)** and SGT. **ERIC BECKEL (ID:914294)** while acting in their capacities as officers of the City of New York, unlawfully and improperly attacked and assaulted Plaintiff and caused him to suffer psychological and physical injuries, and then arrested and imprisoned Plaintiff, thereby depriving of liberty without due process of law, and depriving of rights, privileges and immunities as guaranteed by the Fourth and Fourteenth Amendments to the Constitution of the United States. The Court has jurisdiction over this action under [42 U.S.C. § 1983](#), [28 U.S.C. § 1343](#), and [28 U.S.C. § 1331](#). Plaintiff seeks declaratory relief pursuant to [28 U.S.C. § 2201](#), compensatory and punitive damages for the violation of his civil rights pursuant to [42 U.S.C. §§1981, 1983, 1985 and 1986](#) and an award of costs, disbursements and attorneys fees under [42 U.S.C. §1988](#). All causes of action not relying exclusively on the aforementioned federal causes of action as a basis of this Court's jurisdiction are based on the Court's supplemental jurisdiction pursuant to [28 U.S.C. §1367](#) to hear state law causes of action. As the deprivation of rights complained of herein occurred within the Southern District of New York, venue is proper pursuant to [28 U.S.C. § 1391\(b\)](#) and [\(c\)](#).

2. The Plaintiff, **CHEVON HUTCHINSON**, at all times herein mentioned resided and still resides at 3551 Dekalb Avenue, Bronx, NY 10467.

3. At all times mentioned herein, Defendant NYC was and still is a domestic municipal corporation, created, organized and existing by virtue of the laws of the State of New York. Upon information and belief, Defendants **DETECTIVE ROSA**

GONZALEZ-NOA(ID:930246) and SGT. ERIC BECKEL(ID:914294) were and still are NYC employees, and residents of Bronx County, New York.

4. At all times herein mentioned, Defendant **NYC** and Defendants **DETECTIVE ROSA GONZALEZ-NOA (ID: 930246) and SGT. ERIC BECKEL (ID:914294)** stood in such a relationship with each other in providing law enforcement services as to make each other liable for the acts and omissions of others.

5. At all times herein mentioned, Defendants **DETECTIVE ROSA GONZALEZ-NOA(ID:930246) and SGT. ERIC BECKEL(ID:914294)** were employed by the New York City Police Department, and these Defendants acted toward Plaintiff under the color of statutes, ordinances, customs and usage of the State of New York, City of New York.

6. On or about June 18, 2009, the defendants violated state laws, federal and NYC police department rules and regulations when they Plaintiff, Defendants assaulted, attacked, unlawfully arrested and imprisoned Plaintiff. Plaintiff spent one day in jail without any justification, and the charges the Defendants fabricated were dismissed.

**AS AND FOR A FIRST CAUSE OF ACTION FOR UNREASONABLE
FORCE IN VIOLATION OF PLAINTIFF'S 4th AMENDMENT RIGHTS**

7. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

8. The amount and type of physical force used by Defendants **DETECTIVE ROSA GONZALEZ-NOA (ID: 930246) and SGT. ERIC BECKEL (ID: 914294)** on Plaintiff was unreasonable and violated Plaintiff's right to be secure in his person.

9. The amount and type of physical force used in the course of Defendant **DETECTIVE ROSA GONZALEZ-NOA (ID: 930246) and SGT. ERIC BECKEL(ID:914294)** attack on Plaintiff on or about June 18, 2009, caused immediate physical, and psychological damage in the form of humiliation, fear, anxiety and depression.

10. Plaintiff was assaulted without justification and with no provocation on Plaintiff's part.

11. Defendants **DETECTIVE ROSA GONZALEZ-NOA (ID: 930246) and SGT. ERIC BECKEL(ID:914294)** failed to act as reasonable police officers would under the circumstances.

12. Plaintiff did not pose a threat to the safety of the police officers or others, at anytime when he was assaulted and falsely arrested.

13. Plaintiff was not attempting to flee.

14. As a result of the assault, excessive force and false arrest, Plaintiff, a citizen of the United States, was subjected to deprivations of his constitutional rights under the Fourth Amendment.

15. As a result, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR THE SECOND CAUSE OF ACTION FOR FALSE ARREST
AND IMPRISONMENT IN VIOLATION OF PLAINTIFF'S CIVIL RIGHTS**

16. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

17. On or about June 18, 2009, Defendants **DETECTIVE ROSA GONZALEZ-NOA (ID:930246)** and SGT. **ERIC BECKEL (ID:914294)** unlawfully and with malice arrested and imprisoned Plaintiff for one day.

18. Defendants physically prevented Plaintiff from leaving their custody, and kept Plaintiff under their supervision without access to freedom, family and home.

19. Defendants arrested and imprisoned Plaintiff without a warrant or pretense of legal process, depriving Plaintiff of his liberty. Plaintiff did not consent to the arrest and the imprisonment.

20. Defendants intended to and did in fact arrest and confine Plaintiff.

21. Plaintiff was conscious of his unlawful arrest and imprisonment and did not consent to it.

22. All of the foregoing occurred without fault or provocation on the part of Plaintiff.

23. As a result of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR THIRD CAUSE OF ACTION FOR FAILURE TO INTERVENE
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS**

24. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

25. Defendants **DETECTIVE ROSA GONZALEZ-NOA (ID: 930246)** AND SGT. **ERIC BECKEL (ID:914294)** acted under the color of law when they assaulted and falsely arrested Mr. Hutchinson. Each of them failed to intervene to prevent unlawful conduct.

26. At all times mentioned herein, Defendant NYC and its officers, including all Defendants **DETECTIVE ROSA GONZALEZ-NOA (ID: 930246)** AND SGT. **ERIC BECKEL (ID:914294)** were under affirmative duty to intercede on behalf of Plaintiff to prevent the violation of Plaintiff's constitutional rights.

27. At all times mentioned herein, Defendants **NYC** and its officers, including all Defendants **DETECTIVE ROSA GONZALEZ-NOA (ID: 930246)** AND SGT. **ERIC BECKEL (ID:914294)** failed that duty and affirmatively supported and participated in the violation of Plaintiffs constitutional rights.

28. Defendants had the power to prevent and aid in preventing the commission of the unlawful arrest and false imprisonment, and the use of excessive force, but neglected and refused to do so.

29. All Defendants displayed a deliberate indifference to the violation of Plaintiff's constitutional rights, when it knew or should have known that the Defendant's actions in assaulting Plaintiff were a constitutional violation.

30. Defendants **NYC** knew and/or should have known that the NYPD practiced of racial profiling of African-Americans and profiled citizens. The City did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct. As a result of the police officers of the City of New York, including the Defendant officers,

believed that their actions would not be properly monitored by supervisory offers and that misconduct would not be investigated or sanctioned, but would be tolerated.

31. As a result of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR FOURTH CAUSE OF ACTION FOR NEGLIGENT
HIRING, TRAINING AND SUPERVISION AGAINST DEFENDANT NYC**

32. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

33. At all times mentioned herein, Defendant NYC knew that its employees, Defendants **DETECTIVE ROSA GONZALEZ-NOA (ID: 930246)** AND SGT. **ERIC BECKEL (ID:914294)** engaged in the unlawful practice of racial profiling and illegally strip searching arrested citizens.

34. Defendant NYC knew that such practice poses a risk of a violation of Plaintiff's constitutional rights and disregarded that risk.

35. Defendant NYC acquiesced and condoned such practice, and failed to stop the practice and train and supervise to develop an alternative meaningful way of gathering information and in confronting and arresting suspects pursuant to the guidelines set forth in the patrol guide.

36. At all times mentioned herein, Defendant NYC knew and/or should have know that it hired and continued to employ individuals who were unfit for the official duties delegated to them in that they abused their official authority and committed violations of constitutional rights of the United States citizens, including Plaintiff.

37. Defendant NYC hired and continued to employ individuals unfit for the law enforcement responsibilities to which they were assigned.

38. Defendant NYC hired and continued to employ individuals engaging in the unlawful practice of assaulting citizens, including Plaintiff, without any justification.

39. Defendant NYC negligently, with reckless disregard of the risk, and with deliberate indifference created a situation where it was likely that its police officers, Defendants **DETECTIVE ROSA GONZALEZ-NOA (ID: 930246)** and SGT. **ERIC BECKEL (ID:914294)** due to their aggressive tempers, propensity to bang citizen's heads into walls and to punch citizens in the face and head and to condone such actions especially when suspects are in handcuff. Lack of training and propensity for violence would engage in unlawful acts during the course of their employment and cause others, including Plaintiff, to be unlawfully assaulted and deprived of constitutional rights.

40. Defendant NYC deliberately turned a blind eye to the actions of employees like Defendants **DETECTIVE ROSA GONZALEZ-NOA (ID: 930246)** AND SGT. **ERIC BECKEL (ID:914294)**, and detective Baker, and in fact acquiesced in and condoned violent and unlawful acts of its employees.

41. As a result of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S
RIGHT AGAINST UNREASONABLE **SEARCH AND SEIZURE 4th** AMENDMENT**

42. Plaintiff **CHEVON HUTCHINSON** repeats and re-alleges each and every allegation contained in paragraphs 1 through 41 with full force and effect as if each were more fully set forth herein.

43. Defendants illegally subjected Mr. Hutchinson to a full body strip search. The search was performed in violation of the patrol guide rules.

44. Defendants, and each of them in their individual and official capacities, had a duty to prevent and cease the wrongful detainment, false arrest, assault, false imprisonment, malicious prosecution, illegal strip search, and other wrongful acts that were committed against Plaintiff **CHEVON HUTCHINSON**.

45. In actively inflicting and failing to prevent the above-stated abuses incurred by Plaintiff **CHEVON HUTCHINSON** all of Defendants acted unreasonably, recklessly, and negligently in failing to exercise the slightest amount of due care to secure and protect the civil and constitutional rights of Plaintiffs against illegal search and seizure, physical abuse, detained custody and arrest without other due process violations.

46. The breach of duty under the United States

Constitution by the Defendant **OFFICERS** was a direct and proximate cause of the aforestated harm suffered by Plaintiff **CHEVON HUTCHINSON**.

47. By reason of the foregoing, Plaintiff **CHEVON HUTCHINSON** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR SIXTH CAUSE OF ACTION FOR ASSAULT, BATTERY AND
EXCESSIVE FORCE IN VIOLATION OF PLAINTIFF'S CONSTITUTIONAL RIGHTS**

48. Plaintiff repeats and re-alleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

49. At all times herein mentioned, Defendants **DETECTIVE ROSA GONZALEZ-NOA (ID:930246)** AND SGT. **ERIC BECKEL (ID:914294)** committed un-permitted harmful and offensive contact upon Plaintiff, committing battery. Defendants intended to cause such harmful and offensive contact, and did in fact cause it.

50. At all times herein mentioned, Defendants created a reasonable apprehension in Plaintiff of immediate harmful and offensive contact, committing assault. Defendants intended to create such apprehension, and caused, permitted, and allowed Plaintiff both physical and emotional distress.

51. As a result, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

**AS AND FOR SEVENTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION IN VIOLATION OF PLAINTIFF'S CIVIL RIGHTS**

52. Plaintiff repeats each and every allegation set forth above with the same force and effect as if set forth herein.

53. Defendants instituted criminal process against Plaintiff with malice and in an effort to cover up their illegal and unconstitutional actions. Upon information and belief, Defendants **DETECTIVE ROSA GONZALEZ-NOA (ID: 930246) AND SGT. ERIC BECKEL (ID:914294)** participated in the malicious prosecution by providing false information, cooperating, and serving as witnesses, knowing that their allegations and the information they provided were false.

54. The charges leveled against Mr. Hutchinson were not based upon probable cause, that is, the state of the facts in the minds of the prosecutors would not lead a man of ordinary caution and prudence to believe, or entertain an honest or strong suspicion that Plaintiff was guilty.

55. The criminal proceeding terminated in favor of Plaintiff when the court dismissed the charges on October 07, 2009.

56. As a result of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff **CHEVON HUTCHINSON** demands a judgment awarding damages against each Defendant jointly and severely in all causes of action in an amount that exceeds the jurisdictional amounts of all lower courts that would otherwise have jurisdiction; together with interest, attorney fees, the costs and disbursements of this action, and such other and further relief as to this Court seems just and proper.

Dated: May 23, 2012 New York, NY

Respectfully submitted,

By: Gary N. Rawlins

The Rawlins Law Firm, PLLC

Attorney for Plaintiff

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